SEARCHING A MOBILE PHONE AND THE PROTECTION OF LEGAL PROFESSIONAL PRIVILEGE

North Macedonian Criminal Procedure and European Standards for Confidential Legal Assistance

PROFESSIONAL SCHOLARLY PAPER

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Professional and scholarly analysis with a practical protocol for protecting legal professional privilege in mobile-phone searches

This paper does not create a general immunity for lawyers' devices and does not replace legal assessment in an individual case

Abstract

Searching a mobile phone may expose legal advice, draft defence strategy, evidential material and the communications of several clients at once. For that reason, the lawfulness of seizing the device is not sufficient, by itself, to justify every subsequent search of its contents. This paper examines the relationship between powers to obtain electronic evidence and the protection of legal professional privilege in North Macedonian law. The normative analysis connects the Constitution, the Law on Criminal Procedure and the 2023 Law on Advocacy with the standards of the European Court of Human Rights. Particular attention is given to a client's phone, a lawyer's phone, a device containing mixed material, access to cloud accounts and a suspicion that the lawyer may be involved in criminal conduct. The principal conclusion is that protection must operate before confidential material becomes available to the prosecution team. The paper proposes a model combining sealed preservation, limited technical acquisition, independent filtering and judicial determination of disputed confidentiality. The model is the author's operationalisation of statutory and Convention guarantees, not a description of an already fully regulated domestic procedure. Its practical contribution includes a lawfulness matrix, a protocol for lawyers, a hypothetical case and model procedural applications.

Keywords: mobile phone search; legal professional privilege; electronic evidence; judicial authorisation; fair trial; privacy; independent filtering.

Scholarly and Professional Contribution

The paper's original contribution is a four-stage distinction between physical seizure of the device, technical acquisition, substantive examination of content and evidential use, supplemented by a model of preventive protection for legal professional privilege. The central innovation is that protection should operate before the investigative team sees the disputed material, through sealing, the minimum technical acquisition necessary, independent filtering and a judicial decision concerning disputed records. The model is an interpretative and *de lege ferenda* operationalisation, not an assertion that such a special procedure is already exhaustively regulated in domestic law.

Scope of the paper: the analysis does not create a general immunity for lawyers' devices and does not assume that every contact with a lawyer is professionally confidential. Protection depends upon the nature of the communication, the professional role, the legal basis and the specific scope of the investigative measure.

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The established ECtHR line of authority requires enhanced procedural safeguards where a search reaches lawyers' electronic data. *Wieser and Bicos Beteiligungen v. Austria* (2007) is particularly relevant to the manner of searching and filtering electronic data; *Robathin v. Austria* (2012) to excessive scope; *André and Another v. France* (2008) to searches of law offices; *Michaud v. France* (2012) to professional secrecy; and *Kruglov and Others v. Russia* (2020) to safeguards during searches involving lawyers. These cases do not create an identical domestic procedure, but they establish a minimum Convention standard of lawfulness, necessity, proportionality and effective protection of privileged material.

10 Proposal for Independent Filtering of Confidential Material

The proposed protective regime can be applied in practice as a "digital privilege firewall" with five successive steps: (1) preservation and identification of the device without unnecessary reading; (2) a technical copy with a documented hash and strictly limited access; (3) independent filtering of potentially privileged categories; (4) judicial determination of disputed records with no more disclosure than necessary; and (5) release to the investigative team only of material to which access has been authorised. The independence of the filtering must be real rather than formal: the person carrying out the filtering should not use privileged material to direct the investigation.

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1 Subject of the Research and Methodological Framework

A mobile phone may simultaneously be a means of communication, an archive of legal assistance and a source of evidence of a criminal offence. On a lawyer's device, private correspondence, communications with courts and material concerning entirely unrelated clients will often coexist. On the client's phone lies the other side of the same confidential communication. The legal question therefore cannot be exhausted by ownership of the device: one must determine what content is sought, on what basis, for what purpose and who will see it.

The central research question is: under what substantive and procedural conditions may North Macedonian authorities obtain data from a mobile phone containing privileged lawyer-client material without violating the confidentiality of legal assistance and the right to an effective defence? The principal hypothesis is that a general judicial authorisation to search does not replace the special protection of confidential communications. The auxiliary hypothesis is that the protection is practically inadequate if it begins only after the prosecution has already read the material.

The paper employs a normative-dogmatic method, systemic interpretation consistent with the Convention, comparative analysis of selected European cases and testing of the proposed model by means of a hypothetical situation. The selection of European cases is functional: they concern telephone data, electronic archives, filtering or effective judicial control. No interviews, statistical study or representative review of North Macedonian judicial practice has been undertaken. Accordingly, the paper makes no empirical claims about the prevalence of particular police or judicial practices.

The normative basis is the 2010 Law on Criminal Procedure, including the identified amendments of 2012, 2016 and 2018 and relevant constitutional case-law, together with the 2023 Law on Advocacy. The editorial verification date is 28 September 2026. The available sources do not confirm the entry into force of a new Law on Criminal Procedure replacing the numbering analysed here; announced or proposed solutions are not treated as law in force. This is a limitation of publicly available verification, not a representation that every issue of the Official Gazette has been exhaustively checked.[1]

The paper distinguishes three levels: an express statutory rule, the author's interpretation of its scope, and a proposal for further regulation. Where an issue is contestable, that is stated at the point of analysis. The practical forms are models to be adapted to the particular procedural stage; they do not assume the existence of a remedy or power that the law does not expressly provide.

2 Constitutional and Convention Basis of Protection

Protection rests upon several interconnected constitutional guarantees. The confidentiality of communications is regulated by Article 17, as replaced by Amendment XIX. Article 18 guarantees the security and confidentiality of personal data, Article 25 protects private and family life, and Article 26 protects the inviolability of the home. Article 53 defines the legal profession as an autonomous and independent public service. These guarantees protect distinct interests and should not be collapsed into a single general prohibition on investigation.[2]

When already stored data are searched, the primary questions are the lawfulness of access, privacy and confidentiality of correspondence. Monitoring ongoing communications raises additional questions concerning special investigative measures and the conditions governing restrictions upon communications secrecy. A search order must not be interpreted as tacit authorisation for future surveillance. If the device continues to receive new messages during the analysis, the authority must distinguish what falls lawfully within the order and document the access.

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[1] Law on Criminal Procedure, Official Gazette of the Republic of Macedonia nos. 150/2010, 100/2012, 142/2016 and 198/2018; Decision U.br.2/2016 was published in no. 193/2016. For the text and cross-references, see also Constitutional Court, U.br.222/2024, 30 April 2025. The sources and limitation of verification are stated in the bibliography.

[2] Constitution of the Republic of North Macedonia, Articles 18, 25, 26, 53 and 118; Amendment XIX replacing Article 17. Official Constitutional Court publication cited in the bibliography.

Article 8 of the European Convention on Human Rights protects privacy and correspondence. Any interference must have a legal basis of sufficient quality, pursue a legitimate aim and be necessary and proportionate. Article 6 is relevant where access to legal advice affects preparation of the defence, the privilege against self-incrimination or the overall fairness of proceedings. Article 13 requires an effective domestic remedy for an arguable Convention complaint, subject to its conditions of application.[3]

The existence of a judicial order is an important safeguard, but it does not complete the analysis. The court must consider the scope of the search and the manner in which confidential material is protected. Conversely, a finding of a violation of Article 8 does not, by itself, mean that the ECtHR will necessarily also find a violation of Article 6. The domestic evidential consequence must also be assessed in light of the separate, express prohibition in Article 12(2) of the Law on Criminal Procedure.[4]

3 What Legal Professional Privilege Covers

Legal professional privilege protects the ability of a person to seek legal assistance without a justified fear that information entrusted to a lawyer will become investigative material used against that person. It has a professional dimension, as a duty of the lawyer, and a procedural dimension, as a limit upon authorities obtaining and using evidence. It is not enough that the lawyer remains silent if an authority can read the same information from the lawyer's phone without adequate safeguards.

An additional European point of reference is the Council of Europe Convention for the Protection of the Profession of Lawyer (CETS No. 226), opened for signature on 13 May 2025. North Macedonia signed it on 13 May 2025; according to the Treaty Office status available in 2026, no ratification was recorded. The Convention strengthens the institutional significance of confidentiality, professional independence and safeguards during searches and access to lawyers' material, without being presented here as already directly applicable domestic law.

Article 4(2) of the Law on Advocacy expressly covers lawyers' books, case files, dossiers, electronic data and other means of communication, subject to statutory exceptions. Paragraph 3 protects communications between lawyers and between a lawyer and a client, irrespective of the method by which they are conducted, including their evidential use. Article 17(1) governs the lawyer's duty to keep entrusted information confidential.[5]

The Code of Lawyers' Ethics links confidentiality to legal advice sought, representation and defence, as well as to confidential information obtained by the lawyer in another way in connection with the matter. Formal submissions are therefore not the only protected material: working notes, drafts, voice messages and explanations of the factual background may also fall within the protection. The presence or absence of the label "confidential" is not decisive.[6]

For any particular record, the professional role of the participants, its connection with legal assistance and the nature of the content must be established. Not every conversation with a person who happens to be a lawyer is privileged. A private greeting or communication in the capacity of a business partner may enjoy ordinary privacy protection without attracting the same professional protection. Conversely, legal advice given before a formal power of attorney is signed should not automatically fall outside the protection; what matters is the real relationship of seeking and providing legal assistance.

The fact that a particular person contacted a lawyer may reveal a sensitive circumstance even without disclosing the substance of the advice. Metadata therefore also require a necessity assessment. It does

[3] European Convention on Human Rights, Articles 6, 8 and 13; on the relationship between Article 8 and Article 6, see *Saber v. Norway*, no. 459/18, 17 December 2020, § 51.

[4] *Saber v. Norway*, no. 459/18, 17 December 2020, §§ 48–57, especially § 51. The conclusion concerning domestic exclusion is additionally based upon Article 12(2) of the Law on Criminal Procedure.

[5] Law on Advocacy, Official Gazette of the Republic of North Macedonia no. 199/2023, Article 4(2)–(3) and Article 17(1); text published by the Bar Association.

[6] Code of Lawyers' Ethics, Part V on professional secrecy, especially points 20–21, text published by the Bar Association.

not follow, however, that every telephone number or call time is unconditionally subject to the same evidential regime as confidential legal analysis. This distinction must be resolved in context rather than by automatically classifying an entire contact list.

A pre-existing business document does not become immune from lawful acquisition from an independent source merely because it was later sent to a lawyer. The covering message, the client's explanation and the lawyer's analysis may, however, be protected. This distinction prevents both abuse of privilege and the hollowing-out of the protection itself.

4 The Phone as an Object and as a Source of Data

For the purposes of procedural analysis, four acts are distinguished: physical seizure of the phone; technical acquisition of data; searching and reading the content; and use of that content as evidence. The distinction is analytical, but it has immediate legal consequences: the basis that justifies the first act does not, without further examination, justify each of the acts that follow.

Article 181(2) of the Law on Criminal Procedure requires a written and reasoned judicial order for the search of a computer. Article 184 regulates the search of computer systems and data and refers to other devices and data carriers. The functional inclusion of a modern smartphone within that framework rests upon its electronic processing and storage of data, further supported by Article 198. A device need not be called a "computer" in ordinary speech in order to require appropriate procedural protection.[7]

Seizure is considered under Articles 194–198 of the Law on Criminal Procedure. Article 198(1) also carries the limitations in Article 197 across to computer data. Its rule requiring surrender of data upon a written request by the public prosecutor should not be used to circumvent the judicial-order regime where what is actually taking place is a search of an entire device. Surrender of specifically identified existing data and exploration of unknown content on a phone are different forms of interference.[8]

Risk of delay may justify an urgent preservation or seizure mechanism provided by law. It is not a general licence for unlimited reading. Article 196 establishes a specific regime for seizure without an order and, where there is express objection, an application by the prosecutor for subsequent judicial approval within 72 hours. That period is not a general appeal period for the owner and does not automatically make every search retrospectively lawful.[9]

A technical copy is itself an interference with data. The phrase "we are only copying it" does not remove the risk, because the copy can be searched, replicated and stored separately from the original. Where broader technical acquisition is necessary to preserve evidence, the necessity should be explained, access restricted and any subsequent substantive examination placed under separate control. That is a proposed protective approach, not an autonomous power to copy privileged material.

Matrix of Actions and Legal Questions

Action	Primary check	Risk to privilege
Seizure of device	Articles 194–196 LCP; act, basis and receipt	Treating seizure as consent to read
Search	Articles 181 and 184 LCP; reasoned judicial scope	Unrestricted access to all clients
Surrender of data	Article 198 subject to Article 197 limitations	Circumventing the search regime
Forensic analysis	Authorised scope and documented method	Reading before privilege is resolved
Evidential use	Articles 12 and 93 LCP; Article 4 Law on Advocacy	Use of legal advice or derivative knowledge

[7] Law on Criminal Procedure, Article 181(2), Article 184 and Article 198(1). The classification of a smartphone is a functional interpretation of these provisions.

[8] Law on Criminal Procedure, Articles 194–198, especially Article 198(1). The distinction between surrender of specified data and a search is the author's systemic interpretation.

[9] Law on Criminal Procedure, Article 196(1)–(2). The 72-hour period concerns the prosecutor's application under the conditions stated in the provision.

5 The Judicial Order and the Limits of the Search

Articles 186–189 of the Law on Criminal Procedure govern the application for, determination of and content of the order. The order must permit review of the purpose, object and location of the search and of the authorised executor. In the context of a mobile phone, a formula such as “all data relevant to the proceedings” is unlikely, by itself, to provide a verifiable limit. The reasons should connect the category of data sought to the specific facts under investigation.[10]

As an authorial standard of particularisation, the paper proposes: identification of the device; the relevant period; categories of communications or documents; persons or events to which the search relates; a regime for potentially privileged records; and an obligation to log access. These elements are not presented as a literal exhaustive list contained in Article 189, but as an application of statutory specificity and Convention proportionality to digital content.

A broader temporal scope may sometimes be justified, for example where conduct under investigation was prepared over a longer period. But the reason should be concrete. Keyword searches may likewise generate many irrelevant results, especially where the word is the name of a company represented by the lawyer in multiple matters. Keywords are therefore a technical aid, not an independent legal safeguard.

Cloud content requires separate attention. A locally stored message, a previously downloaded backup and a fresh retrieval from a remote server are not the same act. An account that is open on the phone does not amount to unrestricted authority to access all connected accounts, other people’s devices or future messages. The scope of the order, the type of acquisition and, where relevant, the rules of international co-operation must be identified. Technical possibility does not create jurisdiction.

An order appointing an expert cannot, by itself, cure the unlawfulness of prior acquisition, nor can it expand the object of the search without an appropriate procedural basis. The expert should answer technical questions within the authorised scope. The legal decision whether a record is protected by legal professional privilege belongs to the competent authority, subject to effective judicial control.

6 Search of a Law Office and of a Lawyer’s Phone Outside the Office

Article 182(2) of the Law on Criminal Procedure permits a search of a law office only in proceedings against the lawyer and in relation to a specifically identified object, file or document. Article 21(3) and (4) of the Law on Advocacy require the presence of the lawyer and an authorised representative of the Bar Association and limit inspection to the documents expressly identified in the judicial act. The safeguard reflects the danger that an investigation concerning one matter may open the archives of every client.[11]

There is a textual inconsistency that should not be ignored. Article 191(8) of the Law on Criminal Procedure provides, where the lawyer is absent, for the attendance of a representative of the Bar Association or another lawyer and, after three hours, permits the search to proceed without that person. The later Article 21(3) of the 2023 Law on Advocacy uses a stricter formulation concerning the presence of the lawyer and the authorised representative. Automatically applying only the less protective regime in the Law on Criminal Procedure would deprive the later professional safeguard of practical effect.[12]

The position advanced in this paper is that the court should strive for a harmonised interpretation that ensures enhanced protection and should give specific reasons for any departure it considers legally permissible. The arguments based upon a later and more specific rule are strong, but they are not presented as an already established, uniform domestic judicial solution. Express legislative harmonisation is required, particularly for urgent cases and situations in which attendance is objectively impossible.

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[10] Law on Criminal Procedure, Articles 186–189. The proposed digital limitations are the author’s particularisation, not the verbatim content of Article 189.

[11] Law on Criminal Procedure, Article 182(2); Law on Advocacy, Article 21(3)–(4).

[12] Law on Criminal Procedure, Article 191(8); Law on Advocacy 2023, Article 21(3). The paper advances an interpretation without claiming that a unified domestic case-law has been identified.

Where a phone is seized from a lawyer in a vehicle, on the street or at home, the spatial rule relating to the law office does not mechanically transfer in its entirety. The substantive protection in Article 4 does not, however, disappear merely because the device has moved. The lawyer should immediately identify the existence of professional material and request a judicially determined filtering regime, explaining the involvement of a Bar Association representative as a necessary safeguard in the circumstances.

The presence of a representative during physical seizure is insufficient if the phone is later analysed without supervision in a laboratory. Protection must extend to the moment at which the content is exposed. The Bar representative assists in identifying professional secrecy and recording objections; that person is not automatically a digital-forensics expert and does not replace the judicial decision.

7 Statutory Prohibitions and Their Exceptions

Article 197(1)(2) of the Law on Criminal Procedure regulates the prohibition on seizure of written communications from the accused to defence counsel, except where voluntarily surrendered by the accused. Through Article 198, that protective regime is also linked to electronic data. This provides a direct domestic basis for objection where correspondence with the defence is sought from a client's phone. Article 4 of the Law on Advocacy provides a broader professional framework not limited to a person who is already formally accused.[13]

Article 197 also contains express exceptions. Paragraph 2 covers reasonable suspicion of assistance in the commission of the offence, assistance after the offence or concealment, as well as objects that must be seized under the Criminal Code. Paragraph 3 provides an exception in relation to criminal offences committed to the detriment of children and minors. A serious analysis must state the provisions that cut against protection and then examine their concrete application.[14]

Lawyer status is not immunity for a lawyer's own criminal conduct. Yet suspicion must be factually individualised; representing an unpopular client, conveying procedural advice or challenging the prosecution's theory is not evidence of assistance. Even where an exception applies, the files of other clients do not thereby become open without limit. Records connected with the reasonable suspicion should be isolated while protection of the remaining legal assistance is preserved.

The broad wording of paragraph 3 raises a particularly sensitive issue. Protection of children is a powerful legitimate aim, but it does not render assessment of necessity and proportionality unnecessary. The author's interpretation is that an exception from one evidential prohibition does not constitute an unlimited release from constitutional and Convention safeguards or from the special guarantees of the defence. No domestic decision has been identified that finally resolves the entire relationship between this provision and Article 4 of the 2023 Law on Advocacy.

Protection in relation to testimony is separately regulated by Article 213(2) and (3) of the Law on Criminal Procedure. Defence counsel does not testify about matters entrusted in that capacity unless the accused requests it; the lawyer's professional secrecy is also covered by the following point, subject to its conditions. These provisions should not be incorrectly cited as Article 214, which concerns persons exempted from testimony because of specified family relationships.[15]

8 Erroneous Statutory Cross-References and Legal Certainty

The text of Article 197(1)(2) contains a reference to Article 215(1), while Article 198(2) refers to Article 185. Those references were the subject of an application before the Constitutional Court. In Order

[13] Law on Criminal Procedure, Article 197(1)(2) and Article 198(1); Law on Advocacy, Article 4. On the erroneous cross-reference in Article 197, see U.br.222/2024.

[14] Law on Criminal Procedure, Article 197(2)–(3). Paragraph 2 refers to reasonable suspicion of assistance, assistance after the offence or concealment, and objects that must be seized; paragraph 3 concerns offences committed to the detriment of children and minors.

[15] Law on Criminal Procedure, Article 213(2)–(3); for the distinction, see Articles 214–215.

U.br.222/2024 of 30 April 2025, the Court rejected the application in those parts; in its reasoning it considered the nature of nomotechnical defects and the limits of its jurisdiction.[16]

Academic and professional precision requires the printed text in force to be distinguished from its systemic interpretation. An author may not silently replace the number of an article and then present the altered wording as a verbatim statutory quotation. Where a cross-reference is necessary, the precise provision should be given and the problem explained. The Constitutional Court's order should not be described as a statutory correction or as striking out the disputed words.

There are independent and clear bases for protecting legal professional privilege in Article 4 of the Law on Advocacy, Article 213 of the Law on Criminal Procedure and Article 8 ECHR. The erroneous internal cross-reference should therefore not be used to argue that confidentiality has ceased to exist. At the same time, the court should explain the relationship among the provisions that it applies. Legal certainty is not secured by ignoring the defect.

9 European Standards and Their Domestic Application

9.1 A Client's Phone in *Saber*

In *Saber v. Norway*, no. 459/18, 17 December 2020, the ECtHR considered a search of a copy of a smartphone containing communications with lawyers. The applicant was an injured party in the relevant investigation. The Court found a violation of Article 8 because the framework and safeguards protecting professionally confidential data were insufficiently clear. For domestic law, it is significant that protection does not depend upon whether the device is held by the lawyer or the client, nor solely upon the formal status of an accused person.[17]

The lesson drawn by the author is that the filtering dispute should be resolved before the investigative team gains access to the disputed content. That lesson must be implemented through domestic procedural powers; the judgment does not, by itself, create a new North Macedonian authority or special procedure.

9.2 A Lawyer's Phone in *Särgava*

Särgava v. Estonia, no. 698/19, 16 November 2021, concerned electronic devices seized from a lawyer suspected of participating in a criminal organisation. The ECtHR found a violation of Article 8 because of insufficient procedural safeguards for professional secrecy. According to the Court's official overview, it was not necessary to establish that confidentiality had in fact been breached for the deficiency in safeguards to be relevant.[18]

For the proposed domestic model, this means that genuine suspicion against a lawyer and the need to protect the lawyer's other clients can coexist. The scope of access should be controlled rather than treating the entire professional archive as a single object of investigation.

9.3 Judicial Review in *Vinci Construction*

In *Vinci Construction and GTM Génie Civil et Services v. France*, nos. 63629/10 and 60567/10, 2 April 2015, the ECtHR stressed the need for concrete judicial review of seized documents alleged to be irrelevant or confidential. Review is not exhausted by asking whether formal authority for the search

[16] Constitutional Court of the Republic of North Macedonia, Order U.br.222/2024 of 30 April 2025, point 2 of the operative part and the corresponding reasoning. This was not a repeal or authentic correction of the statutory text.

[17] *Saber v. Norway*, no. 459/18, 17 December 2020, §§ 48–57; HUDOC 001-206519. The author's domestic-law application is set out separately.

[18] *Särgava v. Estonia*, no. 698/19, 16 November 2021; ECtHR, *Factsheet – Legal Professional Privilege*, p. 10 of the available PDF. This paper relies upon the official summary of the outcome and safeguards.

existed. Where the objection is reasoned and the material identifiable, substantive assessment and an appropriate decision concerning its fate are required.[19]

In North Macedonian proceedings, an objection should therefore contain verifiable identifiers and a concrete form of relief. The assertion that “the phone contains privileged lawyer-client material” is an important warning triggering initial protection, but final determination requires further individualisation of the disputed scope, without unnecessary disclosure of the privilege itself.

9.4 Other Clients’ Data and Excessive Scope

Kırdök and Others v. Turkey, no. 14704/12, 3 December 2019, illustrates the need for effective protection even where electronic data of lawyers who are not the target of the investigation are retained. Formal lawfulness of the search is not a sufficient answer to a specific request for return or deletion of professionally confidential copies.[20]

The ECtHR’s official thematic overview highlights *Bersheda and Rybolovlev v. Monaco*, nos. 36559/19 and 36570/19, 6 June 2024, concerning examination of a lawyer’s phone beyond the permitted scope. In *Reznik v. Ukraine*, no. 31175/14, 23 January 2025, insufficient protection during seizure and subsequent examination of lawyers’ electronic devices is emphasised. These two cases are used here on the basis of the official thematic overview, without attributing unverified propositions from the full judgments.[21]

For all of these authorities, domestic relevance is interpretative and Convention-based. Judgments against other states are relevant to interpretation of the Convention; the national procedural mechanisms of those states do not automatically transfer into the North Macedonian Law on Criminal Procedure. The concrete obligations of a state as party to a particular case and the general interpretative significance of the case-law are separate questions.

10 Proposal for Independent Filtering of Confidential Material

The proposed model begins with cautious designation of potentially protected content. That is a procedural warning, not a final determination that the entire phone is inaccessible. Pending resolution of the dispute, the material should remain unavailable to those developing the prosecution strategy. The fundamental purpose is to avoid knowledge that cannot later realistically be “forgotten”.

The first stage is to secure the device by record and controlled access. The second is to determine the permissible scope and the technical method of acquisition. If broader acquisition is technically unavoidable, that should be explained specifically to the competent court; protective measures do not replace the legal authority required. The third stage is to filter potentially privileged records before substantive review for prosecution purposes.

Independence should also be functional: the person conducting the investigation should not simultaneously make the final determination whether that person was entitled to read the defence strategy. Within the limits of lawful competence, a judicially controlled procedure involving a technical specialist and an authorised representative of the Bar Association may be proposed. The paper does not claim that the Law on Criminal Procedure already prescribes a special “filter team”, or that a private agreement between the parties can create public authority of that kind.

The fourth stage is a short inventory of disputed records: identifier, time range, participants to the extent necessary and the basis of the claimed protection. The inventory itself should be supplied under an appropriate protective regime because it may also reveal client relationships. The court decides the

[19] *Vinci Construction et GTM Génie Civil et Services c. France*, nos. 63629/10 and 60567/10, 2 April 2015, §§ 78–81; HUDOC 001-153318.

[20] *Kırdök and Others v. Turkey*, no. 14704/12, 3 December 2019; official HUDOC extract 001-198805 and ECtHR, *Factsheet – Legal Professional Privilege*, pp. 9–10 of the available PDF.

[21] ECtHR, *The Rights of Lawyers in the Court’s Case-Law*, thematic overview, pp. 5 and 14 of the available PDF: *Bersheda and Rybolovlev v. Monaco*, 6 June 2024; *Reznik v. Ukraine*, 23 January 2025. The official overview, not the full judgments, was used.

disputed categories by a reasoned decision that protects confidentiality as far as possible. Only the authorised part is released for further evidential analysis.

The fifth stage is control of copies and closure of custody. It should be possible to establish how many copies exist, who accessed them and which records were exported. Where the conditions are met, a decision should be sought requiring removal or destruction of unauthorised copies, while preserving the minimum record necessary to verify the breach. Unilateral deletion by a party or lawyer is not proposed.

The model accepts the need to preserve relevant evidence. Its justification must also be assessed in terms of practical feasibility: time, cost and the possibility of selective extraction. Where selection requires more time, a reasoned temporary restriction on access is preferable to an unsupported assertion that the entire device may be reviewed merely for speed.

11 Passwords, Biometrics and Voluntary Surrender

Article 184 of the Law on Criminal Procedure imposes duties to facilitate access and prevent destruction or alteration of data, with sanctions where there are no justified reasons for non-compliance. Read in isolation, however, that provision cannot be treated as the final answer to every demand that a suspect disclose a memorised password. It must be reconciled with the right to silence, the prohibition on compelled statements and the privilege against self-incrimination.[22]

A distinction is required between a suspect, a third party administering a system and a lawyer holding another person's professional secret. Article 195(3) expressly excludes punishment of the suspect under paragraph 1 for failing to surrender objects. That rule does not mechanically transpose into Article 184 as an identical textual exclusion; the difference requires reasoned legal analysis. No final domestic solution has been identified for all forms of compelled unlocking.

Biometric unlocking should likewise not be equated with ordinary identification of a person. Its purpose is access to content, so the lawfulness of access, limits on compulsion and professional secrecy remain relevant. This paper advocates neither blanket permissibility nor blanket prohibition irrespective of circumstances.

The practical response is to require formalisation of the demand, identification of its legal basis and an opportunity for legal advice and judicial control. The record should distinguish an objection to disclosure of protected content from a refusal to preserve the device. A lawyer should not advise deletion, concealment or remote alteration of data.

Voluntary surrender of a particular conversation is not consent to every conversation. Especially on a lawyer's phone, one client's permission does not extend to the secrets of other clients. Any specific waiver requires examination of voluntariness, informed choice, scope and the person's entitlement to dispose of the confidentiality in question. A routine receipt for surrender of a device should not be converted into presumed consent to an unrestricted search.

12 Integrity of the Evidence and Personal-Data Protection

Lawfulness and technical reliability are separate conditions. A technically unaltered record may have been unlawfully obtained; a lawfully obtained record may be incomplete or misinterpreted. An objection based upon legal professional privilege should therefore be considered separately from objections concerning authenticity and context.

For technical verification, the paper proposes recording the condition of the phone, identifiers, time and place of seizure, persons who handled it, the acquisition method and limitations of the software used. Control hash values serve to verify the integrity of a particular extraction or file. They do not prove who wrote a message or whether its content is true. With mobile devices, one should not always promise a

[22] Law on Criminal Procedure, Article 184(1)–(3), Article 12(1), Articles 69–70 and Article 195(3); ECHR, Article 6. The relationship to compelled unlocking is identified as a contested issue.

complete and immutable physical image; the method and state of the system should instead be documented.[23]

A screenshot may be a useful lead, but where a conversation is disputed the context, sequence, time zone, attachments and possibilities of editing or deletion should be examined. An automated report from a forensic tool does not replace professional scrutiny. Likewise, algorithmic classification of messages as “privileged” or “non-privileged” must not be the sole legal decision: errors must be capable of human review.

The Law on Personal Data Protection provides an additional framework for the lawfulness, purpose, scope and security of processing. The official catalogue of the Agency for Personal Data Protection lists the principal Law no. 42/2020 and amendments nos. 294/2021 and 101/2025. Analysis of a particular processing operation must take account of specific procedural legislation and statutory limitations upon rights; the personal-data legislation is not an autonomous search warrant and does not replace procedural mechanisms for filtering evidence.[24]

Within a law office, separating professional and personal accounts, limiting employee access and maintaining secure backups reduce exposure. These are preventive professional measures. They should form part of ordinary practice, not be introduced as a reaction designed to destroy or remove material after lawful preservation has begun.

13 Unlawfully Obtained Evidence and Procedural Protection

Article 12(2) of the Law on Criminal Procedure prohibits the use of evidence obtained unlawfully or in violation of constitutional, statutory or treaty rights, as well as evidence derived from it. Article 93 governs the exclusion of evidence upon which a judicial decision cannot be based: during the investigation, the pre-trial judge decides; after an indictment is filed, the panel reviewing the indictment decides. A separate appeal lies to the higher court. Once the decision is final, excluded evidence is kept separately and may not be examined or used; exclusion is therefore not the same as destruction. In relation to electronic material, the application should cover both the disputed content and its procedural carriers: report, transcript, annex or official record.[25]

An effective challenge requires causal and procedural particularisation. It should identify which access was impermissible, which safeguard was omitted, which records were affected and which further evidence was derived from them. The later discovery of another item of evidence does not, by itself, prove unlawful derivation; the path of discovery must be examined. If the prosecution invokes an independent source, it should explain and substantiate that source rather than automatically importing foreign doctrines as domestic law.

If the investigative team has already read defence strategy, formal removal of the messages may be insufficient to restore practical fairness. It is necessary to identify who had access and how the knowledge was used, and then to seek appropriate measures within the law. A change in the composition of the team may be the subject of a reasoned application, but it is not presented here as an automatic statutory consequence.

The available remedy depends upon the act and the procedural stage. Article 198(3) provides for an appeal within 24 hours against the decision on measures under paragraph 2, without suspensive effect. That period does not apply to every search order or every seizure of a phone. For other acts, their legal

[23] Ayers, R.; Brothers, S.; Jansen, W., *Guidelines on Mobile Device Forensics*, NIST SP 800-101 Rev.1, 2014, particularly the sections on preservation, acquisition, examination, analysis and reporting. Technical reference, not a source of North Macedonian law.

[24] Law on Personal Data Protection, Official Gazette of the Republic of North Macedonia nos. 42/2020, 294/2021 and 101/2025; principal text, especially Articles 9, 10, 27 and 36, and the official catalogue of the Agency for Personal Data Protection.

[25] Law on Criminal Procedure, Article 12(2) and Article 93(1)–(2). Exclusion, separate custody and prohibition of use are distinguished from any later disposal of additional copies.

nature, the applicable provision and the notice of rights must be checked. A universal “objection to search” with a single deadline should not be invented.[26]

Protection may require an urgent application to restrict access, an application for return when the conditions cease to exist, exclusion of unlawfully obtained evidence and a challenge to its use when the indictment or merits are considered. A proceeding before the Agency for Personal Data Protection, a disciplinary complaint or a criminal report where there are concrete indications of abuse each has its own conditions and does not replace judicial protection within the criminal case.

For any application to the ECtHR, exhaustion of effective domestic remedies, victim status and the time limit under Article 35 ECHR must be assessed. It should not be assumed in advance that every complaint must await the final criminal judgment or that every collateral application extends the time limit. The choice depends upon the particular violation and the domestic protection available.[27]

14 Practical Protocol for Lawyers

The protocol is a proposed working sequence. Its recommendations apply within the powers available in the particular case, without physically obstructing an official act and without altering data. Where the lawyer is a suspect, the lawyer should simultaneously secure independent legal assistance for himself or herself and protect the rights of clients whose material is stored on the device.

14.1 At the First Measure

Check the identity and capacity of the officials, the judicial act, the purpose and the scope. Record whether only the device is being seized or whether unlocking and immediate reading are also demanded. Require the objection to access to privileged material to be accurately entered in the record. Where the measure concerns a law office, invoke the special statutory guarantees and request participation of the authorised representative of the Bar Association.

Before signing, check that the record distinguishes acknowledgement of receipt or seizure from consent to search. If objections are not recorded, submit a separate written statement with the time of submission and proof of receipt. Obtain copies of available acts and receipts. Do not place the names and confidential matters of all clients into a public filing merely to prove that the phone has a professional function.

14.2 Before Forensic Analysis

Submit an urgent and concrete request for a controlled regime to the competent authority. Explain why privileged material is expected, which categories are affected and which less intrusive measures are available. Seek judicial resolution before disclosure of the content, together with a record of each access. Where necessary, propose a technical specialist to explain what is technically feasible.

14.3 After Receipt of the Report

Compare the actual scope with the authorised scope: periods, applications, accounts, attachments and exported files. Check whether communications with defence counsel and material concerning other clients were included. Seek the technical information necessary for independent verification without allowing the defence’s request for access to create a new breach of another person’s confidentiality. Then particularise applications for exclusion, restriction or further expert examination.

[26] Law on Criminal Procedure, Article 198(2)–(3); Article 93(1) concerning the separate appeal against an exclusion order. The applicable deadline and availability of remedies in relation to other acts are determined separately.

[27] ECHR, Article 35(1). The application period is four months from the final domestic decision under the applicable rules; ineffective or inappropriate applications are not assumed to extend the time limit.

14.4 Judicial Challenge

Organise the arguments in the following order: legal basis; scope of the order; special protection; factual breach; evidential consequence; and relief sought. For each disputed record, demonstrate the connection with the specific right. End the application with a clear procedural objective, not merely a general condemnation of the conduct. Where the court refuses relief, ask that the decision address the substance of the confidentiality arguments and the less intrusive measures proposed.

Case-Control Matrix

Question	Document or check	Requested response
What access is authorised?	Order and reasons	Delimit device, period and data
Is there privileged material?	Minimal protected inventory	Keep disputed part inaccessible until decision
Who saw the content?	Access log	Judicial review of actual exposure
Was the scope exceeded?	Report compared with order	Specific exclusion and restriction
Is there derivative evidence?	Discovery chronology	Review causal connection
Where are the copies?	Inventory and custody regime	Separate custody and decision on further treatment

15 Hypothetical Case and Testing of the Proposed Model

15.1 Factual Setting

All persons, designations and events in this example are fictional. Lawyer A represents several clients and keeps professional email and messages on a single phone. In an investigation concerning a suspicious payment between two companies, the authorities hold an order to search data connected with a specified transaction during a three-month period. The phone also contains material relating to Client B's family dispute and confidential defence material for Client C in another criminal case.

It is assumed that the order was issued by a competent court and that the phone was lawfully secured. These assumptions isolate the central problem: whether the authorities may immediately read all copied content. If it later appears that a search of the law office was undertaken only against a client, without satisfying Article 182(2), that would be an additional and prior defect not cured by a sound forensic procedure.

15.2 Positions of the Parties

The prosecution may argue that relevant messages are distributed across several applications and that technical acquisition is necessary to avoid data loss. That argument is capable of verification and may be well founded. It does not follow, however, that every investigator should see the entire communication. Preservation must be distinguished from reading, and the prosecution should explain why a narrower method would not suffice.

The lawyer does not argue that a phone can never be evidence. The lawyer identifies the professional material and seeks isolation of Client B's and Client C's material together with judicial review of the communications relating to the transaction. If there is concrete suspicion that Lawyer A personally assisted in a criminal offence, that issue is examined within Article 197 and access limited to relevant records. The unrelated client matters remain a separate question.

15.3 Proposed Procedural Solution

The court first reviews the scope and legal basis. It then establishes, within its powers, a regime preventing disputed material from becoming available before the question of protection is determined. The technical specialist documents what has been acquired and what has been filtered out. Only

authorised material relating to the transaction is made available to the prosecution; disputed categories remain separately held pending a reasoned determination.

If the authorities have already read Client C's defence strategy, an access log and a concrete review of whether that knowledge was transmitted into Client C's case should be required. The immediate breach of confidentiality is distinguished from any evidence that may have been derived from it. The proposed outcome is not a supposed North Macedonian judgment, but a test of whether the model can preserve relevant evidence while preventing exposure of other clients.

15.4 Variant Involving the Client's Phone

If the same conversation is found on the client's phone, the fundamental objection based upon confidential legal assistance remains. Ownership of the device alters the factual setting but does not remove the professional nature of the conversation. A client may voluntarily surrender certain communications under the statutory conditions; that does not justify presuming a waiver of protection for all other records or of the rights of other persons.

16 Proposals for Legislative and Institutional Development

An express procedure is needed for electronic material that may contain legally privileged content. It should identify the deciding authority, the manner of sealing, permissible technical access, participation of affected persons and the conditions for release of the authorised part. It is not enough for the law merely to declare confidentiality if it does not resolve the conflict that arises when protected and unprotected content coexist within the same data store.

The Law on Criminal Procedure and the Law on Advocacy should be expressly harmonised concerning attendance during searches of law offices. The handling of a lawyer's electronic device outside the office, and laboratory analysis following seizure, should be specifically regulated. Otherwise, the level of protection may depend upon the accidental place at which the same phone happens to be found.

Erroneous internal statutory references should be corrected and the scope of the Article 197 exceptions reconsidered in light of non-derogable requirements of fair proceedings. The legislative solution should permit effective investigation of a lawyer's own criminal conduct, but require a concrete connection between the suspicion and the data sought.

A specific and expedited judicial remedy is proposed for disputes over digital professional privilege, with the possibility of temporarily suspending access to the disputed part without necessarily halting the entire investigation. Control of copies, periodic review of the need for retention and documented disposal should be regulated by law. These proposals are *de lege ferenda*; identifying them does not imply that they already exist in the proposed form.

Institutional implementation requires joint protocols for courts, prosecution services, police, experts and the Bar Association within the law. Training should use mixed-content scenarios and test whether participants understand the distinction between technical acquisition and legal authority to read. Success may be monitored through time to judicial resolution, numbers of controlled accesses and documentation of disposed copies, without public disclosure of client data.

17 Conclusion

North Macedonian law contains express bases for protecting legal professional privilege and electronic communications. The difficulty lies in applying them in practice where a single phone contains relevant evidence, confidential legal assistance and third-party material. A judicial decision should therefore control both the scope and the manner of access, while the lawyer's objection should be timely, individualised and directed towards a concrete measure.

Seizure of the device is not unrestricted authority over its contents. Protection of legal assistance also applies where the communication is stored on the client's phone. Suspicion against a lawyer requires

investigation within the statutory conditions, but does not make the whole archive of the lawyer's clients freely available. Voluntary surrender has a defined scope, and technical reliability does not replace lawfulness.

The strongest practical safeguard is to separate disputed content before it is seen by the prosecution team. The proposed model of judicially controlled filtering operationalises that objective while candidly recognising current normative gaps. Express further regulation should ensure that relevant evidence is preserved without allowing confidential defence material to become the means by which evidence is obtained.

Annex 1 Model Note for the Record

The device that is the subject of this measure contains communications and electronic material connected with the provision of legal assistance, including data belonging to other clients. I rely upon Article 4 of the Law on Advocacy and the applicable provisions of the Law on Criminal Procedure concerning protected communications and the lawfulness of evidence. I request that this statement be entered in full in the official record.

Surrender or physical securing of the device does not constitute my consent to unrestricted searching, copying or disclosure of professionally confidential material. I request that such content not be made available to the investigative team before the competent court has resolved the dispute concerning its protection and the scope of access. I request that every action taken be documented and that I be provided with a copy of the record and the receipt.

This statement does not concern destruction or alteration of data. I request preservation under a controlled regime pending the competent decision. If the measure is carried out in a law office, I additionally request the application of Article 182(2) of the Law on Criminal Procedure and Article 21(3) and (4) of the Law on Advocacy.

Annex 2 Model Urgent Application for a Protective Regime

To the competent court in Case [reference]

Applicant: [name and procedural capacity]

The subject of this application is temporary restriction of access to potentially protected electronic data and a judicial determination of their treatment.

By the measure carried out on [date and time], the device [description and identifier] was secured pursuant to [act and number]. The device contains [minimal description of categories] connected with legal assistance. The objection was raised in [official record or filing]. The risk is that confidential content may become available before its protected status has been determined.

It is proposed that the court, within its applicable powers: delimit the permitted scope; impose a temporarily inaccessible regime for the disputed content; ensure documented technical handling and control of copies; permit protected individualisation of disputed records; and make a reasoned decision on access before the investigative team undertakes substantive analysis of the disputed part.

The application is based upon the specifically applicable provisions of Articles 12, 181, 184, 197 and 198 of the Law on Criminal Procedure, Article 4 of the Law on Advocacy and Article 8 ECHR. Where the defence in a criminal case is affected, the relevance of Article 6 ECHR should also be explained. The proposed technical regime is not presented as an already prescribed special procedure, but as a necessary measure for effective enjoyment of the guarantees.

Attachments: copy of the available act, record or receipt; evidence of the prior objection; and, where necessary, a separately protected inventory. Date, signature and stamp.

Annex 3 Model Application for Exclusion

To the competent court in Case [reference]

Exclusion and prohibition of evidential use are sought in relation to materials [identifiers] contained in [report, record or annex]. The materials were obtained by [specific act], in violation of [specific provision and safeguard]. Their professionally confidential nature follows from [minimum necessary explanation].

The unlawfulness consists in [absence or excess of authority, breach of special protection, or another specific reason]. Evidence [identifiers] was derived from the disputed material through the following verifiable pathway [factual connection]. If the prosecution claims an independent lawful source, it is requested to identify the source and the time at which it was obtained.

On the basis of Article 12(2) of the Law on Criminal Procedure and the applicable rules on exclusion, including Article 93 concerning excluded evidence, a reasoned decision is sought in relation to the primary and derivative material, together with restriction of further disclosure and determination of the regime governing copies. Any disposal is to be carried out following a competent decision, with a record sufficient to verify the breach. Date, signature and stamp.

Annex 4 Questions for Examination of the Digital-Forensics Expert

1. Which device, accounts, applications and time periods did you examine, and under which act supplied to you?
2. Which method did you use, and what are its limitations given the particular condition of the phone?
3. Did you collect local data or retrieve new content from a remote system, and how did you record the distinction?
4. Were you informed of potential legal professional privilege, when were you informed, and who decided how it should be treated?
5. Which persons had access to the unfiltered content, and what record exists of their actions?
6. How many copies, extracts and reports were created, and where are they stored?
7. To which specific object does each stated hash value relate, and what does it not prove?
8. How did you verify the time zone, completeness of the conversation and the context of attached files?
9. Did the tool produce warnings, failed extractions or automated classifications requiring manual review?
10. Can the relevant finding be independently verified without disclosing the material of other clients?

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Statement on Scope, Currency and Integrity

The legal sources and publicly available case-law were editorially checked up to 28 September 2026. Where no unified domestic practice has been identified, the paper does not present one as existing. The hypothetical case does not concern real persons. The author declares no conflict of interest. The practical forms are models to be adapted to the particular procedural stage, legal basis and judicial competence.